

Court No. - 21

Case :- WRIT - C No. - 4329 of 2024

Petitioner :- Ravi Shankar Vishwakarma

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Devendra Tiwari Deva

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. Learned counsel for respondent-Electricity Department shall place evidence on record to show when the notice of the provisional assessment was served upon the petitioner.
2. List as fresh on 15.03.2024.
3. In the meantime, no coercive measure shall be taken against the petitioner.

Order Date :- 1.3.2024

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(Kshitij Shailendra,J.) (Manoj Kumar Gupta, J.)

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1. The instant petition has been filed challenging the final assessment order dated 18.10.2023 issued by the respondent-Electricity Department in a case of alleged theft of electricity.
2. Sri N.K. Tiwari, learned counsel for the respondent-Electricity Department, is in receipt of instructions and the same has been placed on record. A perusal thereof reveals that notice of provisional assessment dated 17.6.2023 was issued granting fifteen days time to the petitioner to file objections. The said notice was sent by registered post on 17.8.2023. No date was fixed for hearing the petitioner, contrary to the procedure laid down under Clause 6.8 of the U.P. Electricity Supply Code, 2005. Consequently, the final assessment order passed on the ground that the petitioner had not filed any objection, is rendered illegal and is accordingly quashed.
3. The petitioner is granted two weeks time to file objections to the notice of provisional assessment. He will be heard by respondent no. 2 on 8.4.2024 and thereafter final assessment order will be passed. In case the petitioner fails to file objections or appear for personal hearing on the date fixed, it shall be open to respondent no. 2 to proceed further in the matter without waiting for the reply or fixing any other date for personal hearing.
4. The petition is disposed of accordingly.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Order Date :- 15.3.2024/Jaideep/-